

supplied by the statute, and one under the common law with different elements set forth in the case law. If Plaintiff files an amended complaint alleging these claims, the claims should be pleaded in separate causes of action. (See Cal. R. Ct., Rule 2.112.)

14. 9:00 AM CASE NUMBER: C25-01916

CASE NAME: JODI MURPHY VS. WENDY WONG, MD

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: ZIMMER, INC.

TENTATIVE RULING:

Before the Court is a demurrer to plaintiff's complaint by defendant Zimmer, Inc., erroneously sued as Zimmer Biomet and Zimmer Biomet Corporate Services. For the reasons set forth, the Court rules as follows: (a) demurrer to second cause of action – **overruled as moot**; (b) demurrer to third cause of action – **overruled**; and (c) demurrer to fourth cause of action – **sustained, with leave to amend**.

Background

Plaintiff alleges that defendant Zimmer Biomet supplied medical devices and hardware to hospitals and surgeons. (Compl. ¶ 4.) She alleges Zimmer Biomet Corporate Services "operates as a corporate services entity for the Zimmer Biomet family of companies," and provided medical devices and hardware, including implants, to hospitals and surgeons. (Compl. ¶ 5.) Though originally sued as two entities by the names set forth, defendant Zimmer, Inc. has appeared in the action as the true defendant, asserting it was erroneously sued as Zimmer Biomet and Zimmer Biomet Corporate Services. The Court describes the relevant allegations of the complaint as against "Zimmer."

Plaintiff alleges she underwent a total knee replacement performed by defendant Wendy Wong, M.D. at Golden State Orthopedics in Walnut Creek. (Compl. ¶ 11.) She alleges that in addition to placing a Zimmer knee replacement implant, Dr. Wong placed a Zimmer Persona IQ implant without her consent. (Compl. ¶ 11.) Plaintiff further alleges as to Zimmer that after the surgery, she was contacted by a Zimmer representative who told her that "her surgeon had enrolled her in Mymobility," which she alleges is Zimmer's patient care app, and that during the surgery, Dr. Wong had implanted an electronic device with a battery and sensors for use with the app. (Compl. ¶ 13.)

Plaintiff alleges she has been harmed by the implantation of the Persona IQ device, that she has suffered injury to her physical and mental health, as well as pain and suffering. (Compl. ¶¶ 14, 15.) As relevant to the Zimmer demurrer, Plaintiff alleges causes of action against Zimmer for failure to obtain informed consent (2nd C/A), medical battery (3rd C/A), and invasion of privacy under the common law and Civil Code section 56.10 (4th C/A). Plaintiff has dismissed Zimmer from the failure to obtain informed consent cause of action (2nd C/A). (See Req. for Dism. filed 2/11/2026.)

Standards Governing Ruling on Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not " 'contentions, deductions or conclusions of fact or law.' " (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.) (See also *City of Dinuba v. County of Tulare* (2007) 41 Cal. 4th 859, 865; *Carloss v. County of Alameda* (2015) 242 Cal. App. 4th 116, 123.) The Court gives the complaint "a reasonable

interpretation, reading it as a whole and its parts in their context." (*Blank v. Kirwan, supra*, 39 Cal. 3d at 318.) Further, "[i]f the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer." (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.)

The Court is limited to consideration of the complaint and matters of which the Court can take judicial notice. (*Blank v. Kirwan, supra*, 39 Cal.3d at 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) Questions of fact cannot be decided by the Court on demurrer. (*Requa v. Regents of University of California* (2012) 213 Cal.App.4th 213, 223 ["In considering the merits of a demurrer, 'the facts alleged in the pleading are deemed to be true, however improbable they may be. [Citation.]' [Citation omitted.]"].)

Generally, a complaint is sufficient if it pleads "ultimate" facts. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.) "Ultimately, the complaint is sufficient if 'the adversary has been fairly apprised of the factual basis of the claim against him.' [Citations, internal quotations omitted.]" (*Randall v. Ditech Financial, LLC* (2018) 23 Cal.App.5th 804, 810.) Statutory causes of action, however, must be pleaded with particularity; the "complaint must plead every fact which is essential to the cause of action under the statute." (*Baskin v. Hughes Realty, Inc.* (2018) 25 Cal.App.5th 184, 207.) (*See also Fischer v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 604.)

Zimmer cites *C & H Foods Co. v. Hartford Ins. Co.* (1984) 163 Cal.App.3d 1055, 1062 for the proposition that facts not alleged in the complaint "are presumed not to exist." The statement was made in the context of the Court's review of an order sustaining a demurrer without leave to amend, after the plaintiffs had filed an original complaint, a first amended complaint, and a second amended complaint. (*Id.* at 1060.) The Court also stated that sustaining a demurrer without leave to amend "is not an abuse of discretion if it appears from the complaint that under applicable substantive law there is no reasonable probability that the defect can be cured by amendment. [Citation omitted.]" (*Id.* at 1062 [emphasis added].) In subsequent decisions, the California Supreme Court has stated the rule on demurrer somewhat differently: "If a complaint does not state a cause of action, but there is a reasonable possibility that the defect can be cured by amendment, leave to amend must be granted." [Citation omitted.]" (*Quelimane, supra*, 19 Cal. 4th at 39 [citing *Blank v. Kirwan, supra*, 39 Cal. 3d at 318].) The Court follows the California Supreme Court's subsequent guidance.

Analysis

Zimmer filed general demurrers to the second, third, and fourth causes of action for failure to allege facts sufficient to state a cause of action. (Code Civ. Proc. § 430.10(e).) The dismissal of Zimmer from the second cause of action renders the demurrer to that cause of action moot. Plaintiff opposes the demurrers to the other causes of action.

A. Medical Battery (3rd C/A)

A plaintiff states a cause of action for medical battery by alleging the plaintiff was a patient who consented to one type of medical treatment or procedure, and the doctor performed a "substantially different treatment for which consent was not obtained." (*Cobbs v. Grant* (1972) 8 Cal.3d 229, 239.) In that circumstance, there is a "clear case of battery." (*Id.*) "When the patient gives permission to perform one type of treatment and the doctor performs another, the requisite element of deliberate

intent to deviate from the consent given is present." (*Id.* at 240.) (*See also Rains v. Superior Court* (1984) 150 Cal.App.3d 933, 938 ["A battery is a violation of an individual's interest in freedom from intentional unlawful, harmful or offensive unconsented contacts with his or her person."]; *Piedra v. Dugan* (2004) 123 Cal.App.4th 1438, 1495 [stating elements of a claim for civil battery in case against a physician in which the Court affirmed a nonsuit on battery claim in favor of doctor, but also found any error was not prejudicial].)

The Court in *Conte, supra*, 107 Cal.App.4th 1260 relied on by Defendants explained, "A typical medical battery case is where a patient has consented to a particular treatment, but the doctor performs a treatment that goes beyond the consent. 'When an action is based upon the theory of surgery beyond consent, the gist of such action is the unwarranted exceeding of the consent. This is a theory of technical battery.' [Citation omitted.] . . . [¶] A doctor may not act beyond the patient's authorization except in life- or health-threatening situations." (*Id.* at 1267, 1268 [emphasis added].) "The law presumes that '[w]hen the patient gives permission to perform one type of treatment and the doctor performs another, the requisite element of deliberate intent to deviate from the consent given is present.' [Citation omitted.]" (*Dennis v. Southard* (2009) 174 Cal.App.4th 540, 544.)

An alternative theory of medical battery involves conditional consent to the procedure. "There are three elements to a claim for medical battery under a violation of conditional consent: the patient must show his consent was conditional; the doctor intentionally violated the condition while providing treatment; and the patient suffered harm as a result of the doctor's violation of the condition. [Citation.]" (*Conte v. Girard Orthopedic Surgeons Medical Group, Inc.* (2003) 107 Cal.App.4th 1260, 1269 [holding conditional consent did not apply in that case, as there was no evidence of an express condition imposed on the procedure by the patient].)

Zimmer contends that *Cobbs* and *Conte* both involved a doctor performing a procedure that went beyond that to which the plaintiff had consented or that was substantially different from the procedure to which consent had been given. Zimmer contends that as a medical device provider, it "cannot be held liable for the practice of medicine." The case Zimmer cites for that proposition, *Glennon v. Allergen, Inc.* (2016) 247 Cal.App.4th 1, did not involve a claim for medical battery against a medical device provider. It held that the trial court properly sustained a demurrer to a complaint for negligence against the medical device provider, without leave to amend, on a claim by the plaintiff that the device provider did not adequately train physicians on the use of its medical device, because the claim was preempted by federal law. (*Id.* at 4-5, 19 ["[I]f Allergan's training is inadequate, the matter is best addressed under the FDA's jurisdiction."].) The Court's statement that "medical device manufacturers are not responsible for the practice of medicine" must be read in the context of the facts and claim asserted against the manufacturer in that case, and the law cited by the Court that medical device manufacturers do not have a duty to train physicians on the use of their devices, though if they do provide training and do so negligently, they may be liable for harm caused by the training undertaken negligently. (*Id.* at 20, 21.) The *Glennon* decision does not hold that a medical device manufacturer cannot be held liable for battery because it is not practicing medicine. "It is axiomatic that language in a judicial opinion is to be understood in accordance with the facts and issues before the court. An opinion is not authority for propositions not considered. [Citations omitted.]" (*Chevron U.S.A., Inc. v. Workers' Comp. Appeals Bd.* (1999) 19 Cal.4th 1182, 1195.) (*See also City of Palo Alto v. Public Employment Relations Bd.* (2016) 5 Cal.App.5th 1271, 1319 ["Cases are

not authority for a proposition not considered."].)

Plaintiff alleges that Zimmer personnel "assisted" in the surgical procedure performed by Plaintiff and that Zimmer's "participation in the procedure materially contributed to the unauthorized physical intrusion that exceeded the scope of Plaintiff's consent." (Compl. ¶ 24.) She alleges "Defendants" implanted the Persona IQ device into her knee without disclosure or her consent. (Compl. ¶ 24.) She alleges "Defendants' " actions "involved an unauthorized intrusion into her body, and that Zimmer "aided and abetted the battery committed" by the surgeon "by facilitating the implantation of the unauthorized device." (Compl. ¶¶ 25, 26.)

The Court is required to accept as true well-pled factual allegations of the complaint, "however improbable they may be." (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604; *Universal By-Products, Inc. v. City of Modesto* (1974) 43 Cal.App.3d 145, 151.) Plaintiff alleges that "Defendants," which would include Zimmer, implanted the Persona IQ device in her body without her consent, and that the actions of "Defendants" concerned unauthorized intrusion into her body by implanting that device. Plaintiff alleges Zimmer aided and abetted Dr. Wong's commission of a medical battery against her, and that the conduct of the "Defendants" was intentional. (Compl. ¶ 27.) A person may be liable for aiding and abetting another's intentional tort, including battery, where the person " 'knows the other's conduct constitutes a breach of duty and gives substantial assistance or encouragement to the other to so act . . . ' [Citations omitted.]" (*Austin B. v. Escondido Union School Dist.* (2007) 149 Cal.App.4th 860, 879 [quoting *Casey v. U.S. Bank Nat. Assn.* (2005) 127 Cal.App.4th 1138, 1144].) If the complaint states a cause of action under any theory, that aspect of the complaint survives a demurrer. (*Quelimane, supra*, 19 Cal.4th at 38.)

The complaint alleges facts, accepted as true on demurrer, that are sufficient to state a claim for medical battery and for aiding and abetting another's medical battery of Plaintiff, "however improbable they may be." (*Del E. Webb Corp., supra*, 123 Cal.App.3d at 604.) The general demurrer to the third cause of action is **overruled**.

B. Invasion of Privacy (4th C/A)

In a single cause of action, Plaintiff's fourth cause of action alleges invasion of privacy in violation of the common law and Civil Code section 56.10, part of the California Medical Information Act ("CMIA"). The fourth cause of action is explicitly alleged against Zimmer, contrary to Plaintiff's argument in the opposition that the Civil Code section 56.10 claim is not alleged against Zimmer. (*Compare* Opp. p. 6, ll. 19-25 to Compl. p. 6, ll. 18-21 and ¶¶ 33, 34, and 42.) To the extent Plaintiff contends that she did not intend to assert the CMIA violation against Zimmer, that position highlights the need for amendment to separately plead the cause of action for common law invasion of privacy and violation of section 56.10, as discussed further below.

Plaintiff alleges that she had a reasonable expectation of privacy in decisions regarding her body and a right to bodily autonomy. (Compl. ¶ 32.) She alleges that Zimmer's "actions in facilitating" implantation of the Persona IQ device with its "tracking functionality" without prior disclosure "contributed" to the violation of her bodily autonomy and privacy rights. (Compl. ¶ 33.) Plaintiff alleges that "Defendants' conduct, implanting a foreign electronic device" with transmitting capability without her consent was an intentional intrusion into her privacy rights and bodily integrity. (Compl. ¶ 34.)

She alleges the unauthorized implantation of the Persona IQ device constitutes a serious invasion of her autonomy and bodily privacy that would be highly offensive to a reasonable person. (Compl. ¶ 35.) Most of the other allegations in this cause of action pertain to Dr. Wong and Golden State Orthopedics. She alleges that Dr. Wong and Golden State also violated the CMIA by obtaining, using and "attempt[ing] to disclose" Plaintiff's medical information without her written authorization in violation of Civil Code section 56.10(a). Plaintiff makes one additional allegation specific to Zimmer, that Zimmer's conduct "substantially assisted and encouraged" the wrongful conduct of Dr. Wong and Golden State Orthopedics by its assistance in implanting the Persona IQ device and "communicating directly with Plaintiff" about the device and its functions. (Compl. ¶ 42.)

3. Civil Code Section 56.10

Civil Code section 56.10 provides that a health care provider or contractor "shall not disclose medical information regarding a patient of the provider of health care or an enrollee or subscriber of a health care service plan without first obtaining an authorization, except as provided in subdivision (b) or (c)." (Civ. Code § 56.10(a).) Civil Code section 56.05(j) defines "medical information" as any individually identifiable information, in electronic or physical form, in possession of or derived from a provider of health care, health care service plan, pharmaceutical company, or contractor regarding a patient's medical history, mental health application information, reproductive or sexual health application information, mental or physical condition, or treatment. 'Individually identifiable' means that the medical information includes or contains any element of personal identifying information sufficient to allow identification of the individual, such as the patient's name, address, electronic mail address, telephone number, or social security number, or other information that, alone or in combination with other publicly available information, reveals the identity of the individual." (Civ. Code § 56.05(j)(1) [emphasis added].)

a. Medical Information

The invasion of privacy Plaintiff alleges is the implantation of the device with tracking capability and that is "capable of collecting and transmitting data" from her body. She alleges the data that can be collected, stored, and transmitted is "individualized data related" to her physical condition and treatment (Compl. ¶ 37), but the data must also be "individually identifiable" to be "medical information" under the CMIA. The data must also include, or in combination with other publicly available information, "reveal[] the identity of the individual." (Civ. Code § 56.05(j)(1).) Plaintiff does not allege sufficient facts to allege that the "data" that can be collected and transmitted is "medical information" as defined in the CMIA. Such an allegation is essential to allege with specificity a statutory claim. (*Baskin, supra*, 25 Cal.App.5th at 207; *Fischer, supra*, 214 Cal.App.3d at 604.) If the data is not "medical information" as defined in Civil Code section 56.05(j)(1), there can be no violation.

b. Disclosure

In addition, Plaintiff alleges only that the implanted device is capable of transmitting data, but she does not allege that any data was actually transmitted or disclosed to anyone. Cases construing the CMIA hold that to qualify as a breach of the provisions of this statute, the medical information must have actually been read by an unauthorized person. (*Sutter Health v. Superior Court* (2014) 227 Cal.App.4th 1555, 1557.) (See also *Regents of University of California v. Superior Court* (2013) 220

Cal.App.4th 549, 570 [holding demurrer to CMIA cause of action should have been sustained, where thief stole encrypted hard drive with patient information, and the plaintiff could not "allege her medical records were, in fact, viewed by an unauthorized individual."].) As the Court stated in *Sutter Health*, "without an actual confidentiality breach, a health care provider has not violated section 56.101 and therefore does not invoke the remedy provided in section 56.36. . . . [¶] [S]ection 56.36 provides remedies when a health care provider has 'negligently released confidential information or records concerning [the plaintiff] in violation of this part' (§ 56.36, subd. (b), italics added.) For the reasons given, there is no 'negligent[] release[] . . . in violation of [the Confidentiality Act],' if there is no actual breach of confidentiality. Because Sutter Health has not negligently released information or records in violation of the Confidentiality Act, there is no remedy." (*Id.* at 1555, 1558.)

This interpretation of the CMIA determination is also supported by *Vigil v. Muir Medical Group IPA, Inc.* (2022) 84 Cal.App.5th 197. In *Vigil*, a patient filed a class action lawsuit against an independent medical association ("IPA"), a medical group of doctors whose former employee stole a spreadsheet listing approximately 5,400 patients with certain personal and medical information. (*Id.* at 205-206.) The Court of Appeal affirmed an order which denied class certification in part because an individualized determination would have to be made for each class member as to whether their specific personal and medical information had actually been viewed in order for that class member to have a claim for breach of confidentiality under CMIA. (*Id.* at 213 ["Based on the statute's plain language, we agree with *Sutter Health* that a breach of confidentiality under the CMIA requires a showing that an unauthorized party viewed the confidential information."].)

Regents, Sutter Health and *Vigil* addressed Civil Code sections 56.101 and 56.36(b), which address the negligent release of confidential patient information and the remedies provided for that violation, rather than Civil Code sections 56.10(a) and 56.36(c)(1) which address violation and remedies based on negligent disclosure of confidential patient information. Nevertheless, the reasoning of the decisions supports that a breach of confidentiality based on negligent disclosure also requires a showing a third party viewed the information. As the cases explain, the injury to the plaintiff the CMIA is intended to address is the breach of confidentiality which, based on the meaning of the term confidentiality, only occurs if someone has actually viewed the medical information. (*Vigil, supra*, 84 Cal.App.5th at 213 ["Thus, under the ordinary meaning of 'confidential,' the confidential nature of information is not breached unless the information is reviewed by unauthorized parties. This construction is consistent with the purpose of the CMIA to protect patients' privacy."]; *Sutter Health, supra*, 227 Cal.App.4th at 1557 ["No breach of confidentiality takes place until an unauthorized person views the medical information. It is the medical information, not the physical record (whether in electronic, paper, or other form), that is the focus of the confidentiality Act. While there is certainly a connection between the information and its physical form, possession of the physical form without actually viewing the information does not offend the basic public policy advanced by the Confidentiality Act."].)

Plaintiff alleges there was a physical intrusion into a zone of privacy (her body) by the implantation of an electronic device capable of transmitting data from inside Plaintiff's body. While the implantation of the device capable of providing medical data may arguably meet the first element of the common law intrusion claim, the allegations of the complaint, in light of the case law on intrusion, do not meet the second element. Plaintiff has not alleged that the Persona IQ was ever activated or that any

information from her body was ever captured by the device or transmitted, unlike the cases cited above in which hidden devices were installed, and information was recorded and viewed by persons outside the plaintiff's zone of privacy.

Plaintiff has not cited any case where the mere existence of a hidden monitoring, eavesdropping, or video device that is not activated or does not result in the capture of private information has been held enough to state a claim for common law intrusion. The general demurrer to the fourth cause of action is therefore **sustained, with leave to amend**, as this is the first time the Court has reviewed the sufficiency of the allegations of the complaint, and Plaintiff may be able to allege additional facts to support the claims.

In granting leave to amend, the Court notes that the fourth cause of action in effect alleges under one heading **two distinct causes of action**, one based on a statutory violation with specific elements supplied by the statute, and one under the common law with different elements set forth in the case law. If Plaintiff files an amended complaint alleging these claims, the claims should be pleaded in separate causes of action. (See Cal. R. Ct., Rule 2.112.)

15. 9:00 AM CASE NUMBER: C25-02680

CASE NAME: NATHAN STEINLE VS. PREMDIP DHOOT

HEARING IN RE: APPLICATION AND HEARING FOR RIGHT TO ATTACH ORDER AND ORDER FOR ISSUANCE OF WRIT RE: PREMDIP S. DHOOT, HD 2670 WALNUT BLVD MEMBER, LLC, AND HD TALUS MEMBER, LLC

FILED BY: DHOOT, PREMDIP S

TENTATIVE RULING:

Before the Court are three applications by plaintiff, Nathan Steinle, to attach property owned by LLC defendants, HD 2670 Walnut Blvd Member, LLC and HD Talus Member, LLC, as well as property owned by the individual defendant, Premdip S. Dhoot.

Background

This case arises from a loan by plaintiff to permit defendants to develop and sell real property. (See Declaration of Nathan Steinle in Support of Application for Right to Attach Order and Writ of Attachment, hereinafter "Steinle Decl.," ¶12.) In consideration of the loan, LLC defendants executed a promissory note on August 24, 2022 in the principal amount of \$1,300,000, to be re-paid, along with an additional \$314,136.97 "Lender's Return," by January 1, 2024 ("Maturity Date"). (*Id.*, Ex. 1.) Individual defendant, Dhoot, guaranteed the note. (Steinle Decl., Ex. 2.)

Plaintiff contends that defendants refuse to comply with their repayment obligations and intend to sell the underlying properties being developed. Plaintiff contends defendants are likely to conceal any proceeds from the sales to prevent plaintiff from levying on such proceeds. Plaintiff attaches an email sent on September 16, 2025 demanding payment by the next day at 5:00 p.m. Plaintiff then filed this action on September 18, 2025. (Steinle Decl., Ex. 3.) In November 2025, plaintiff filed the present application for right to attach order and order for writ of attachment.

With respect to the LLC defendants, plaintiff seeks to attach 13 real properties and the following assets held in the LLCs' names: "real property, personal property, equipment, motor vehicles, chattel paper, negotiable and other instruments, securities, deposit accounts, safe deposit